

CHAPTER 42.

An Act to amend the Reserve Forces Act, 1882.

[6th August 1900.]

BE it enacted by the Queen's most Excellent Majesty, by and with the advice and consent of the Lords Spiritual and Temporal, and Commons, in this present Parliament assembled, and by the authority of the same, as follows :

Amendment of
45 & 46 Vict.
c. 48. s. 3,
as to calling
out on
permanent
service.
45 & 46 Vict.
c. 48. •

1. Men in the second division of the first class of the army reserve shall be liable to be called out on permanent service, notwithstanding that directions have not been given for calling out the whole of the first division on such service; and, accordingly, in section three of the Reserve Forces Act, 1882, the words "and in the event of such direction being given men in the second division shall not be liable to be called out on permanent service until directions have been given for calling out the whole of the first division on such service," shall be repealed.

Provided that this section shall not apply to a man who entered the said second division before the passing of this Act, except with his consent.

Amendment of
45 & 46 Vict.
c. 48. s. 10,
as to rank of
militia reservist
on return to
militia.

2. Subsection four of section ten of the Reserve Forces Act, 1882, shall be subject to the following proviso :

Provided that—

- (a) the rank of any such man shall not be lower than that to which he was entitled in the army immediately before he was released from permanent service; and
- (b) if, whilst on permanent service his rank has been reduced below that to which he was entitled before being called out on permanent service, and continues below that rank until the time when he is released from permanent service, his rank in the militia shall be correspondingly reduced; and
- (c) if, being of a rank above that of a private in the militia, he has served on permanent service as a private, and whilst so serving has been awarded any punishment which had he at the time held the rank which he held in the militia would have involved reduction to a lower rank, his rank in the militia on his being released from permanent service shall be reduced accordingly; and
- (d) if under the foregoing provisions the rank of any such man in the militia is raised or reduced above or below that which he held before he entered on permanent service, his pay shall be correspondingly raised or reduced.

Short title.

3. This Act may be cited as the Reserve Forces Act, 1900.